

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 13, 2026 TIME: 8:30 A.M.

No. CV157538

HAINES v. FARLEY

**CELMA FARLEY'S MOTION TO CORRECT, MODIFY, AND/OR SET ASIDE THE
PROPOSED REPORT OF REFEREE**

The motion is denied. Parties to appear to discuss the status of this case in connection with the Judgment and the referee's report and recommendations.

No. 26CV00232

LAING v. STEINBERG

**APPLICATION OF KIMBERLYA. DOUGHERTY TO APPEAR PRO HAC VICE
(UNOPPOSED)**

The unopposed application of Kimberly A Dougherty to be admitted *pro hac vice* in this matter is granted.

No. 26CV01650

REY v. BLACET

PLAINTIFF'S MOTION FOR TRIAL PREFERENCE

The motion for preference is granted.

I. BACKGROUND AND MOTION

Delia Rey, who is 91 years old, ("Plaintiff" or "Rey") filed this action for medical malpractice against Precision Physical Therapy & Fitness and Andrew Blacet ("defendants"). During a physical therapy session, Blacet allegedly let go of the gait belt used to stabilize plaintiff and she fell, breaking her right elbow and sustaining other injuries. Due to her age, surgery was not an option to repair the bone fracture and she now is unable to use her walker. She also sustained vision loss. This complaint was filed May 18, 2026, and on June 11, 2026, plaintiff filed this motion for preferential trial setting pursuant to Code of Civil Procedure section 36, subdivision (a).

Plaintiff seeks preference because she is over the age of 70 (91 years old), has a substantial interest in the case as she is the only plaintiff, and because of her deteriorating health.

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Plaintiff's counsel states that plaintiff is bed-bound and has lost weight and mental capacity; he asserts that plaintiff and her daughter have doubts about Delia's ability to retain competency for trial should the case go forward in the typical timeframe. (Decl. of Davis at ¶¶ 3, 21-23.) The motion is accompanied by a declaration from plaintiff's counsel, Jack Davis. Plaintiff requests this matter be set for trial in October 2026.

Defendants oppose, arguing that plaintiff did not establish she is over 70 or that her health demands trial preference. Defendants maintain that plaintiff relies solely on her counsel's declaration which contains no competent evidence. Defendants contend responsive pleadings have yet to be filed and defendants seek to file a motion to strike – the earliest date available is September 16, 2026. Defendants argue that plaintiff failed to present sufficient medical evidence that her health is such that preference is necessary.

II. DISCUSSION

“A party to a civil action who is over age 70 may petition the court for a trial setting preference. The party may file a motion for preference at any time during the pendency of the action. (C.C.P. 36(c)(2).) The court must grant the petition so long as both of the following conditions are met: (a) The party has a substantial interest in the whole action. (C.C.P. 36(a)(1).) (b) A preference is necessary to prevent prejudice to the party's interest in the litigation due to the party's health. (C.C.P. 36(a)(2).) (2) *Supporting Evidence*. A motion for preference on this ground may be supported by an affidavit, signed by the party's attorney, and based on the attorney's information and belief as to the party's medical condition. This affidavit is admissible only for purposes of the motion. (C.C.P. 36.5.) A physician's declaration is not required. (*Fox v. Superior Court* (2018) 21 C.A.5th 529, 534, 230 C.R.3d 493.) (3) *Mandatory Nature*. Once the court finds the existence of both conditions, the preference is mandatory. (*Rice v. Superior Court* (1982) 136 C.A.3d 81, 86, 185 C.R. 853.)” (8 Witkin Cal. Proc Trial § 58.)

A declaration based upon an attorney's information and belief as to the party's medical condition is sufficient. Therefore, defendants' evidentiary objections to the declaration of Mr. Davis are overruled. A physician's declaration is not necessary. “The attorney's declaration can consist entirely of hearsay and conclusions. [Citation.]” (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) § 12:247.1) If the court grants the motion, it has no discretion to delay the trial setting and is not permitted to balance conflicting interests. “[T]rial must be set within 120 days even if the opposing parties have not completed discovery or pretrial preparation. [Citations.]” (*Id.* at § 12:248.1.)

Given the declaration of counsel concerning plaintiff's age (91 years old) and fragile medical condition, as well as her substantial interest in the case, the Court will grant the motion pursuant to Code of Civil Procedure section 36, subdivision (a). The Court acknowledges

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defendants' opposition and the issues it raises, including that this case was filed in May 2026 and is not yet at issue. The Court orders the parties to meet and confer to set an expedited schedule for anticipated discovery and law and motion practice. Defendants stated they could not obtain a date for their motion to strike until mid- September. The Court reminds defendants they can move to seek ex parte relief for an order shortening time. The Court finds good cause to order a single continuance of 15 days, requiring trial to be set within 135 days of the granting of this motion – or by November 25, 2026. ["Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except ...upon showing of good cause stated in the record. Any continuance shall be for no more than 15 days[.]" (Code Civ. Proc., § 36, subd. (f).)]

No. 25CV03458

REISER v. PAYSTAND, INC.

MOTION TO BE RELIEVED AS COUNSEL (UNOPPOSED)

A Tentative Rulings for this matter will either be posted later today (before 5:00 p. m.), or will be delivered at the time of the hearing. If posted later today, parties are not required to contact the Court in order to appear and contest the tentative ruling.